

25STCV17465 25STCV17465

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Case Number: 25STCV17465 Hearing Date: July 23, 2026 Dept: 408

Defendant's Juan Moreno's Counsel Gates, Gonter, Guy, Proudfood & Muench, LLP's, Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

I.

BACKGROUND

On June 17, 2025, Plaintiff Dave

Severjin ("Plaintiff") filed a complaint against Defendants Sabuj Shaha ("Shaha"), Uber Technologies Inc. ("Uber"), Rasier LLC ("Rasier"), Raiser-CA LLC ("Raiser-CA"), Raiser-DC LLC ("Raiser-DC"), Chantel Moreno ("C. Moreno"), and Juan Moreno ("J. Moreno", collectively "Defendants") alleging a single cause of action for negligence.

On September 3, 2025, Uber, Rasier, and Raiser-CA filed an answer to Plaintiff's complaint.

On September 19, 2025, Shaha filed an answer to Plaintiff's complaint.

On May 13, 2026, C. Moreno and J. Moreno filed an answer to Plaintiff's complaint.

On June 26, 2026, counsel for J. Moreno, Gates, Gonter, Guy, Proudfood & Muench, LLP ("Counsel") filed: (1) MC-051, Motion to be Relieved as Counsel; (2) MC-052, Declaration in Support of Motion to be Relieved as Counsel; (3) MC-053, Proposed Order; and (4) Proof of Service. No opposition or other responsive pleading has been filed.

II.

LEGAL STANDARD

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

An attorney moving to be relieved as counsel under California Code of Civil Procedure section 284(2) must meet the requirements set out in California Rules of Court, rule 3.1362. To comply with Rule 3.1362, the moving party must submit the following forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a), (c), (e).)

The moving party must serve the aforementioned forms on the client and all other parties who have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Further, when the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel provided a motion to be relieved as counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service.[1]

The declaration states that there are

irreconcilable differences between Counsel and J. Moreno that there is a breakdown in communication and the attorney-client relationship preventing Counsel from proceeding further with this action. (Capell Decl., ¶ 2.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to J. Moreno.

IV.

CONCLUSION

Defendant Juan Moreno's Counsel Gates, Gonter, Guy, Proudfoot & Muench, LLP's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

[1] The court notes that the proof of service filed as to this motion and supporting documents demonstrates service on Plaintiff not Counsel's client, Defendant Juan Moreno. The court will inquire at the hearing regarding the sufficiency of this proof of service and may change its tentative ruling accordingly.